

25NWLC00597 25NWLC00597

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Case Number: 25NWLC00597 Hearing Date: August 18, 2026 Dept: Y

25NWLC00597: LVNV FUNDING LLC vs MICHAEL JOHNSON

Tentative Ruling:

The Court has read and considered Defendant Michael Daniel Johnson's ("Defendant") Motion to Set Aside Entry of Default and Default Judgment ("Motion") filed on June 22, 2026 and the supporting declarations. No Opposition has been filed by Plaintiff LVNV Funding LLC ("Plaintiff"). The Court has also reviewed all relevant court records.

The Court notes that Plaintiff filed its Complaint against "Michael Johnson" on January 6, 2025. Request for Entry of Default was entered by the Clerk on March 25, 2025 and Default Judgment was entered by the Court on April 15, 2025. A Writ of Execution was issued on August 20, 2025.

In his Motion, Defendant argues that the judgment is void for lack of personal jurisdiction because Defendant was never properly served with the Summons and Complaint and did not reside at the address where the service was allegedly made. Defendant also argues that he does not match the physical description of the person served.

Defendant also argues that he is not the judgment debtor in this case; has never done business with the original creditor, Cross River Bank; and was a victim of identity theft. He states in his declaration that he filed a police report in May 2023 after he received a notification from Experian about potential fraud associated with his credit.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on January 21, 2025 creating a presumption of service under Evidence Code section 647. The Proof of Service of Summons indicates personal service on "Michael Johnson" at "1780 E 109th Pl., Los Angeles, CA 90059-1214. It describes the individual served as "a black-haired Hispanic male contact 35-45 years of age, 5'6"-5'8" tall and weighing 180-200 lbs."

Defendant's declaration, which was signed under penalty of perjury, states that he has no connection to the address where the Summons and Complaint were served (1780 E 109th Pl.). Defendant also stated, under penalty of perjury, that he was never personally served with the Summons and Complaint in this action or personally served with any of the default notices. He also confirms in his declaration that he does not match the physical description of the person served by the process server. Defendant declares that he is 25 years old; weighs approximately 170 pounds; and is Caucasian, not Hispanic. Defendant also states that he did not have actual notice of this lawsuit until his wages were garnished on or about December 24, 2025. He learned of the default judgment entered against him on or about April 3, 2026 when he contested the wage garnishment in Court. Here, the Court finds that Defendant has rebutted the presumption of service.

Pursuant to Code of Civil Procedure § 473(d), the Court may set aside any void judgment or order. A motion pursuant to Code of Civil Procedure § 473(d) can be brought at any time after judgment. In *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, the California Supreme Court ruled that a motion to vacate a void judgment due to improper service of process under Code of Civil Procedure § 473(d) is not subject to an arbitrary two-year time limit.

The Court also finds that Defendant had no actual notice. "Actual notice," within the meaning of Code of Civil Procedure § 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Code of Civil Procedure § 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

The Court GRANTS Defendant's Motion and vacates and sets aside the Clerk's Entry of Default on March 25, 2025 and Default Judgment on April 15, 2025. The Court also vacates and sets aside the Writ of Execution issued on August 20, 2025.

Defendant has submitted a proposed Answer with his Motion. The Court will deem that Answer filed.

The Court further ORDERS that if any wages that have been garnished are being held by the Los Angeles County Sheriff's Office, such amounts are to be returned to Defendant Michael Johnson (the alleged debtor). To the extent any garnished amounts have been sent to Plaintiff (the creditor), Plaintiff should return such amounts to Michael Johnson and/or his counsel forthwith.

The Court sets trial in this action on May 13, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse.

Defendant to give notice.